

Government Motion Invoking Petition Deadline

Invocation and requested relief

On July 2, 2025, the institutional respondent invokes Section 1252(b)(1) and moves to dismiss the petition received February 13. The Board entered its final order on January 13. The thirtieth day was February 12, and the petition arrived the next day. The respondent identifies no dispute about those dates and seeks enforcement of the statutory filing rule before the court reaches record or CAT merits questions.

Riley v. Bondi holds that the deadline is nonjurisdictional, but it also recognizes that a mandatory claims-processing rule is enforced when the benefiting party timely invokes it. This motion is filed July 2, within the period fixed by the June 27 show-cause order and promptly after Riley supplied controlling guidance. The respondent therefore asks for dismissal under the rule rather than for lack of subject-matter jurisdiction.

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Date calculation

The calculation excludes January 13, the date of the final order. January 14 is day one; January contributes eighteen counted days through January 31; February 1 through February 12 supplies the remaining twelve days. February 12 is therefore day thirty, and February 13 is day thirty-one. Neither endpoint falls on a weekend or federal holiday that would extend the stated statutory period.

The petition itself identifies January 13 and February 13. It does not allege a later served order, amended order, reopening decision, tolling request, prison-mail event, or clerk outage. The respondent relies on that disclosed chronology and does not ask the court to resolve a contested fact. If A.R.M. identifies a legally relevant event in response, the respondent reserves reply; on the current papers the statutory date passed before receipt.

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Riley and enforcement

Riley rejected the view that Section 1252(b)(1) withdraws adjudicatory power whenever a petition arrives outside thirty days. The decision nevertheless distinguishes jurisdiction from a mandatory claim-processing instruction. The respondent invokes that instruction expressly and asks the court to apply it to the disclosed day-thirty-one receipt. Enforcement here would rest on party invocation, not sua sponte jurisdictional screening.

The respondent acted within the court's first post-Riley response period and has not taken a merits position inconsistent with the requested dismissal in this docket. Administrative receipt of the petition, assignment of a docket number, and service of the show-cause order do not waive an objection the court specifically invited after intervening authority. The motion seeks no ruling about how Riley would apply if the respondent remained silent or affirmatively declined to press the rule.

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Assumed procedural facts

The motion proceeds on a confined set of facts: the January 13 final order remained operative; no later agency disposition restarted time; no filing tolled the period; no extension or reopening order exists; the court received the petition February 13; and the respondent invoked the rule by July 7 as directed. The respondent does not rely on an address error, service dispute, or allegation that A.R.M. concealed the filing date.

Those predicates distinguish the timing request from the petition's CAT issues. Whether the agency aggregated feared sources or meaningfully evaluated acquiescence evidence cannot change when the petition arrived. Conversely, dismissal on filing-time grounds would not affirm the agency's factual reasoning or resolve the treatment of any disputed record document. The respondent requests a narrow order enforcing the rule on the stated chronology.

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Conclusion and service

The institutional respondent asks the court to dismiss the petition under Section 1252(b)(1) without reaching aggregate risk, official acquiescence, record composition, or the requested remand. The dismissal should state that the deadline is applied as a claims-processing rule timely invoked after Riley, not as a limit on subject-matter jurisdiction. No costs or factual findings beyond the order and receipt dates are requested.

Counsel certifies electronic service on A.R.M.'s counsel on July 2, 2025. A.R.M. retains the response opportunity fixed by the show-cause order through July 7. The respondent asks the clerk to hold merits administration until that period closes and the court rules. If the motion is denied or the rule is not enforced, ordinary docket and record steps may resume under a later order.